

3RD SCH.
—cont.

Session and Chapter.	Short Title of Act.	Extent of Repeal.
7 & 8 Geo. 5. c. 18.	The Companies (Foreign Interests) Act, 1917.	The whole Act.
7 & 8 Geo. 5. c. 28.	The Companies (Particulars as to Directors) Act, 1917.	Section one, subsection (1) of section two, and in section three the words "seventy-five."

CHAPTER 46.

An Act to amend the Theatrical Employers Registration Act, 1925. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Powers of registration authorities to institute proceedings, &c.

15 & 16
Geo. 5. c. 50.

Power to refuse, cancel or suspend the registration of a person convicted of offence involving dishonesty.

1. It shall be lawful for the registration authority under the Theatrical Employers Registration Act, 1925, to institute and prosecute any proceedings for any offence under that Act, to apply for orders under section seven of that Act, and to oppose applications made under section nine of that Act.

2.—(1) Where an applicant for registration under the Theatrical Employers Registration Act, 1925, or a person registered thereunder, is a person who has been convicted of an offence involving dishonesty (not being an offence under the said Act), and has been sentenced therefor to penal servitude or to imprisonment without the option of a fine, the registration authority, if they consider the offence one which makes it undesirable that a person convicted thereof should be registered under the said Act, may refuse the application or, as the case may be, cancel or suspend the registration of that person:

Provided that a person whose application is so refused, or whose registration is so cancelled or suspended, may, within one month after the refusal, cancellation or suspension, appeal to a court of summary jurisdiction, and the court may dismiss the appeal or make such order in the matter as the court may think just.

(2) Where the registration of a person has been cancelled or suspended under this section, the cancellation or suspension shall not take effect until the time allowed for appealing has expired, and in the event of an appeal being lodged, until the appeal has been disposed of or abandoned.

3. Section one of this Act shall in its application to Scotland have effect as if the reference to the institution and prosecution of proceedings for an offence were omitted therefrom. Special provision for Scotland.

4. This Act may be cited as the Theatrical Employers Registration (Amendment) Act, 1928, and shall be construed as one with the Theatrical Employers Registration Act, 1925, and that Act and this Act may be cited together as the Theatrical Employers Registration Acts, 1925 and 1928. Short title and construction.
